

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #06	CCRB Case #: 201903302	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/12/2019 4:00 PM	Location of Incident: East 185th Street and Prospect Avenue	18 Mo. SOL 5/29/2021	Precinct: 48		
Date/Time CV Reported Wed, 04/17/2019 11:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/17/2019 11:53 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Janert Gil	18305	951771	048 PCT
2. POM Saquoi Harris	02350	961806	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Janert Gil	Abuse: Police Officer Janert Gil stopped § 87(2)(b)	A . Exonerated
B . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris stopped § 87(2)(b)	B . Exonerated
C . POM Janert Gil	Discourtesy: Police Officer Janert Gil spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Saquoi Harris	Discourtesy: Police Officer Saquoi Harris spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Janert Gil	Abuse: Police Officer Janert Gil searched § 87(2)(b)	E . Unsubstantiated
F . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris searched § 87(2)(b)	F . Unsubstantiated
G . POM Janert Gil	Abuse: Police Officer Janert Gil frisked § 87(2)(b)	G . Unsubstantiated
H . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris frisked § 87(2)(b)	H . Substantiated
I . POM Janert Gil	Abuse: Police Officer Janert Gil failed to provide § 87(2)(b) with a business card.	I . Substantiated
J . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris failed to provide § 87(2)(b) with a business card	J . Unsubstantiated
K . POM Saquoi Harris	Abuse: Police Officer Saquoi Harris failed to provide an explanation of the stop to § 87(2)(b)	K . Unfounded
§ 87(4-b) § 87(2)(g)		

Case Summary

On April 17, 2019, § 87(2)(b) filed a complaint with the CCRB over the phone.

On April 12, 2019, at approximately 4:00 pm, PO Janert Gil and PO Saquai Harris of the 48th Precinct stopped § 87(2)(b) at East 185th Street and Prospect Avenue in the Bronx **(Allegation A and B, Abuse of Authority, exonerated)**. § 87(2)(b) informed them he had a complaint against the NYPD. Throughout the incident PO Gil and PO Harris made several discourteous remarks using the expletive “fuck” **(Allegations C and D, Discourtesy, unsubstantiated)**. PO Gil and PO Harris entered § 87(2)(b)'s pockets, **(Allegations E and F, Abuse of Authority, unsubstantiated)**. Then PO Gil and PO Harris frisked his jacket **(Allegations G and H, Abuse of Authority, unsubstantiated and substantiated)**. The officers requested his identification, which § 87(2)(b) refused to provide. § 87(2)(b) told the officers he was going to call the CCRB and they left. PO Gil and PO Harris failed to provide § 87(2)(b) with a business card **(Allegations I and J, Abuse of Authority, substantiated and unsubstantiated)**. PO Harris failed to provide an explanation for stopping § 87(2)(b) **(Allegation K, Abuse of Authority, unfounded)**. § 87(2)(g), § 87(4-b)
§ 87(2)(b) was not issued a summons or arrested.

A cell-phone video was provided by § 87(2)(b) (BR 01). One BWC video was obtained from PO Gil from this incident (BR 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer stopped Janert Gil § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Saquai Harris stopped § 87(2)(b)

§ 87(2)(g)

PO Gil's body-worn camera opens with § 87(2)(b) standing in front of a fence (BR02). PO Harris held both § 87(2)(b)'s wrists in his hands. PO Harris turned § 87(2)(b) around to face the fence.

The cell-phone video § 87(2)(b) provided did not capture any of this incident.

§ 87(2)(b) walked on Prospect Avenue towards East 185th Street and PO Gil and PO Harris stopped him. They instructed him not to move and told him that he had a firearm. § 87(2)(b) complied. § 87(2)(b) wore a windbreaker and blue jeans. His cell phone was in the right pocket of his windbreaker and his money and identification card was in one of his front pockets.

PO Harris testified that he and PO Gil drove on East 185th Street. From the front passenger seat of their vehicle, he observed § 87(2)(b) with an object in the front area of his waistband. They drove slow enough for PO Harris to lock eyes with § 87(2)(b). § 87(2)(b) put his hands in his jacket pocket to conceal the object. The object was consistent to that of a firearm and there

was a bulge in § 87(2)(b)'s waistband. During his CCRB interview, PO Harris recreated the bulge he observed by placing a cell phone under his shirt, so it protruded vertically from his waist/belt area creating an L-shaped bulge. PO Harris told PO Gil that § 87(2)(b) had something in his waistband and that § 87(2)(b) put his hands in his jacket to try to cover it up. PO Harris told PO Gil he believed § 87(2)(b) possibly had a firearm. PO Harris and PO Gil exited the vehicle and approached § 87(2)(b). PO Harris identified himself as an officer and told § 87(2)(b) to stop.

PO Gil drove on East 185th Street when PO Harris informed him of the bulge in the front of § 87(2)(b)'s waistband he observed. The vehicle was three feet away from § 87(2)(b) at the time of this observation. PO Harris exited the vehicle and PO Gil followed approximately ten seconds after and they stopped § 87(2)(b). When PO Gil reached § 87(2)(b) and PO Harris, he did not observe any bulges on § 87(2)(b). He did not remember if he observed bulges at any point on § 87(2)(b).

A screen shot of the 43-second time stamp on the VLC media player of PO Gil's BWC depicted § 87(2)(b) (BR03). In the right pocket of his windbreaker there was a bulge which hung and protruded from around and below his waist. The bulge appeared to be slightly cylindrical in shape. There also appeared to be a bulge in his left jacket pocket with a slightly straighter edge than the bulge in his right pocket. The bulge in his left jacket pocket protruded closer to his waistband area. As per the screen shot the bulged in § 87(2)(b)'s pockets were of an L-shaped, typical of a firearm.

When a police officer entertains a reasonable suspicion that a person has committed, is committing or is about to commit a felony or misdemeanor, the CPL authorizes a forcible stop and detention of that person People v. De Bour, 40 N.Y. 2d 201 (1976) (BR 04). A person is guilty of criminal possession of a weapon when he or she possesses any firearm Penal Law Section 265.01 (BR05).

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegations A and B** be **exonerated**.

Allegation (C) Discourtesy: Police Officer Janert Gil spoke discourteously to § 87(2)(b)

§ 87(2)(b)

Allegation (D) Discourtesy: Police Officer Saquai Harris spoke discourteously to § 87(2)(b)

PO Gil's BWC footage did not capture PO Gil or PO Harris use profanity while speaking to § 87(2)(b) (BR02). The video did not capture the entirety of the interaction.

§ 87(2)(b) alleged that he informed the officers that he had a complaint against NYPD officers. The officers replied that they "did not give a fuck about the CCRB or Internal Affairs". § 87(2)(b) named an investigator, and the officers replied that they did not "give a fuck about him either." Throughout the incident, PO Harris and PO Gil told § 87(2)(b) to "shut the fuck up," and to "fuck out of here."

The officers were consistent that they did not use profanity when speaking to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be **unsubstantiated**.

Allegation (E) Abuse of Authority: Police Officer Janert Gil searched § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Saquai Harris searched § 87(2)(b)

§ 87(2)(g)

PO Gil's BWC did not capture PO Harris or PO Gil search § 87(2)(b) (BR02).

§ 87(2)(b) stated that PO Gil and PO Harris grabbed § 87(2)(b) and entered his pockets. They did not ask for consent. He could not describe which officer entered which pockets but stated all his pockets were entered. PO Harris entered the pockets on § 87(2)(b)'s right side and PO Gil entered the pockets on his left side. They did not remove anything from his pockets.

PO Harris denied that he or PO Gil entered § 87(2)(b)'s pockets or reached inside his pants.

PO Gil did not observe PO Harris search § 87(2)(b) did not make physical contact with § 87(2)(b)

Stop Report § 87(2)(b), entered by PO Harris notes that he observed § 87(2)(b) with an L-shaped bulge, consistent with the shape of a firearm, in his left jacket pocket (BR06). PO Harris noted that § 87(2)(b) was not searched.

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **unsubstantiated**.

Allegation (G) Abuse of Authority: Police Officer Janert Gil frisked § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Saquoi Harris frisked § 87(2)(b)

§ 87(2)(g)

PO Gils's BWC did not capture PO Harris or PO Gil frisk § 87(2)(b) (BR02).

§ 87(2)(b) alleged that both officers frisked his jacket, including the pockets, his torso, all his pants pockets and his back after they entered his pockets. PO Harris reached inside § 87(2)(b)'s pants over his underwear and grabbed his genitals and squeezed. § 87(2)(b) told the officer that he grabbed his penis. PO Harris grabbed his genitals and squeezed again. § 87(2)(b) exclaimed in pain. § 87(2)(g)

PO Harris testified that as they approached § 87(2)(b) § 87(2)(b) was agitated, aggressive, belligerent, and uncooperative. PO Harris told § 87(2)(b) to take his hands out of his pockets which he refused to do, which heightened PO Harris' suspicion that § 87(2)(b) had a firearm. PO Harris removed § 87(2)(b)'s hands from his pockets. § 87(2)(b) became aggressive and moved/waved both his arms and hands in front of his face and chest as he spoke. The bulge was still visible after § 87(2)(b)'s hands were out of his pockets. PO Harris frisked the front area of § 87(2)(b)'s waistband where he observed the bulge. PO Harris determined it was a cell phone after feeling the flat back of a cell phone instead of the barrel of a firearm. PO Harris frisked § 87(2)(b)'s legs, chest, torso area and waistband area to make sure there were no weapons with § 87(2)(b)'s reach or that anything was concealed. PO Harris did not observe any other bulges other than the one caused by the cell phone.

PO Gil testified that he only saw PO Harris frisk § 87(2)(b) PO Gil did not make physical contact with § 87(2)(b)

Stop Report § 87(2)(b), entered by PO Harris notes that he observed § 87(2)(b) with an L-shaped bulge, consistent with the shape of a firearm, in his left jacket pocket (BR06). PO Harris noted that he frisked § 87(2)(b)

Police officers have the authority to frisk an individual if the officer reasonably suspects that he is in danger of physical injury by virtue of the person being armed People v. De Bour, 40 N.Y. 2d 201 (1976) (BR 04). An officer's observation that a man's pocket was weighted down by an L-shaped bulge, which the officer believed to be the outline of a firearm, provided reasonable suspicion to believe the man was armed and justified the minimal intrusion of frisking the pants pocket where he observed the bulge People v. Wright, 253 A.D. 2d 720 (1998) (BR08).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be **substantiated**.

Allegation (I) Abuse of Authority: Police Officer Janert Gil failed to provide § 87(2)(b)

with a business card.

Allegation (J) Abuse of Authority: Police Officer Saquoi Harris failed to provide § 87(2)(b)

with a business card.

§ 87(2)(b) was not provided a business card by either PO Harris or PO Gil.

PO Harris testified that he tried to offer § 87(2)(b) a business card but § 87(2)(b) walked away.

PO Gil was consistent with PO Harris that PO Harris offered § 87(2)(b) a business card, however he did not know if § 87(2)(b) took the card. PO Gil did not provide § 87(2)(b) with a business card because he did not perform the frisk.

PO Gil's BWC did not capture PO Harris' attempt to provide § 87(2)(b) with his business card (BR02). The video did not depict PO Gil provide § 87(2)(b) with his business card.

Officers are to identify themselves to the person who is the subject of the law enforcement activity by providing his name, rank and command, provide to such person an explanation of the reason for the law enforcement activity, unless providing such information would impair a criminal investigation, and offer a business card to a person at the conclusion of a stop, frisk and/or search that does not result in an arrest or summons, NYC Administrative Code 14-174 (BR07).

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation I** be **substantiated**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation J** be **unsubstantiated**.

Allegation (K) Abuse of Authority: Police Officer Saquoi Harris failed to provide an explanation of the stop to § 87(2)(b)

At the 30- second time stamp of PO Gils’ BWC footage on the VLC media player, § 87(2)(b) asks why the officers believe he has a firearm (BR02). At the 36-second time stamp he tells the officers they touched him for no reason and asks why the officers touched him. At the 41-second time stamp PO Gil replies, “We just told you.” At the 59-second time stamp, PO Gil says that they tried to explain why to him. At the 1:06 minute time stamp, PO Harris says, “Listen, you had your hands like this...” and put his hands in his jacket pockets. Before he finished his sentence, § 87(2)(b) spoke over him. Throughout their interaction § 87(2)(b) cursed and yelled.

§ 87(2)(g)

it is recommended that **Allegation K** be **unfounded**.

§ 87(2)(g), § 87(4-b)

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Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one other CCRB complaint and has been name as a victim in eleven prior allegations.
 - § 87(2)(b)
- PO Harris has been a member of service for three years and has been a subject in nine CCRB complaints and 32 allegations, of which one was substantiated.
 - Case number 201802306 involved a substantiated allegation of a question against PO Harris. The Board recommended formalized training and the NYPD imposed formalized training.
 - § 87(2)(g)
- PO Gil has been a member of service for seven years and has been a subject in five CCRB complaints and 13 allegations, none of which were substantiated.

Mediation, Civil and Criminal Histories

- § 87(2)(b) chose not to mediate his complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of September 24, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR11).

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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